

HOUSE No. 1366

The Commonwealth of Massachusetts

PRESENTED BY:

Sean Garballey and Richard M. Haggerty

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect medically fragile children.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>1/15/2025</i>
<i>Richard M. Haggerty</i>	<i>30th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 1366

By Representatives Garballey of Arlington and Haggerty of Woburn, a petition (accompanied by bill, House, No. 1366) of Sean Garballey and Richard M. Haggerty for legislation to further regulate the criteria for continuous skilled nursing services. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect medically fragile children.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 24 of Chapter 12C of the General Laws is hereby amended by
2 adding at the end of the first paragraph the following sentence:

3 In developing the biennial report, the center shall seek input from nurses who provide
4 continuous skilled nursing care and patients and family members of patients that receive
5 continuous skilled nursing care and include in the report information about direct care
6 experiences.

7 SECTION 2. Chapter 118E of the General Laws is hereby amended by adding the
8 following section:-

9 Section 83. (a) Notwithstanding any general or special law to the contrary, and subject to
10 appropriation, the executive office of health and human services shall increase the budget for
11 continuous skilled nursing care, as defined in 101 CMR 361 and 130 CMR 403.402, by an
12 amount that ensures:

(1) At least 75 percent of continuous skilled nursing hours authorized by MassHealth are filled on or before July 1, 2025;

(2) At least 80 percent of continuous skilled nursing hours authorized by MassHealth are filled on or before July 1, 2026; and

(3) At least 85 percent of continuous skilled nursing hours authorized by MassHealth are filled on or before July 1, 2027, and shall remain at 85 percent or above thereafter.

(b) The executive office of health and human services may require any portion of the budget increases provided for in this section to be used exclusively to increase the wage payment rate of nurses providing continuous skilled nursing care.

(c) To satisfy the requirements in subsection (a), the executive office of health and human services shall require MassHealth to submit an annual report no later than January 1 that:

(1) demonstrates that MassHealth has not changed its authorization criteria for continuous skilled nursing services in a way that is more restrictive and results in a reduction in the amount of authorized hours that would have been authorized previously; and

(2) includes the following information from the immediately preceding calendar year: (i) the number of filled and unfilled continuous skilled nursing hours authorized by MassHealth; (ii) the number of appeals received by MassHealth for the denial or modification of continuous skilled nursing hours and the number of patients that filed an appeal; (iii) the number of patients that received a reduction in the amount of authorized continuous skilled nursing hours; and (iv) the number of authorized continuous skilled nursing hours reduced from the immediately preceding calendar year, if any.

(d) The executive office of health and human services, in collaboration with MassHealth and after consultation with the Massachusetts Pediatric Nursing Care Campaign, shall promulgate regulations to implement this section.

(e) Nothing in this section shall be construed to prohibit filling 85 percent of the continuous skilled nursing hours authorized by MassHealth prior to July 1, 2027.

SECTION 3. Notwithstanding any general or special law to the contrary, the office of Medicaid shall review the wage payment rates established by home health agencies that provide continuous skilled nursing care, as defined in 101 CMR 361.00 and 130 CMR 403.402, for the providers of those services. The office shall provide: (i) an aggregated overview of the wage payment rates paid by home health agencies to staff or contracted nurses providing continuous skilled nursing care, including any increases in said wage rates resulting from increases in Medicaid rates paid to home health agencies for continuous skilled nursing care in state fiscal years 2022, 2023 and 2024; (ii) an aggregated breakdown of said wage rates as applied to the acuity level of patients receiving continuous skilled nursing care; (iii) an aggregated breakdown of said wage rates as applied to the licensure level of the providers of continuous skilled nursing care; and (iv) recommendations on criteria to be included in any future reporting by home health agencies receiving an increase of continuous skilled nursing care rates provided by the office. The office shall provide this report not later than March 1, 2027 to the clerks of the senate and house of representatives, the joint committee on health care financing and the senate and house committees on ways and means. Home health agencies providing continuous skilled nursing care shall provide all information and documentation requested by the office of Medicaid to compile the required report under this section.